

Nepal Academy of Science and Technology Act, 1992

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Nepal Academy of Science and Technology Act, 2048

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Amending Acts

1. Nepal Royal Academy of Science and Technology (First Amendment) Act, 2054 2054.1.7
2. Income Tax Act, 2058 2058.12.19
3. Some Nepal Laws Amendment Act, 2063 2063.6.28
4. Nepal Academy of Science and Technology (Second Amendment) Act, 2064 2064.6.15
5. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.17
6. Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 5 of the year 2049

An Act Made to Provide for the Nepal Academy of Science and Technology

Preamble: Whereas, it is desirable to operate the Nepal Academy of Science and Technology as an organized and competent body to create a suitable environment for scientific and technological activities to develop, research, and promote science and technology, and to encourage and value talented scientists and technologists working in the field of science and technology,

Parliament has enacted this Act in the twenty-first year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter - 1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Nepal Academy of Science and Technology Act, 2048".
(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Academy" means the Nepal Academy of Science and Technology established pursuant to Section 3.
 - (b) "Chancellor" means the Chancellor of the Academy.
 - (c) "Vice-Chancellor" means the Vice-Chancellor of the Academy.
 - (d) "Deputy Vice-Chancellor" means the Deputy Vice-Chancellor of the Academy.
 - (e) "Assembly" means the Academic Assembly of the Academy.
 - (f) "Council" means the Management Council functioning as the executive body of the Academy.

(g) "Service Commission" means the Academy Service Commission pursuant to Section 18.

(h) "Academician" means an Academician pursuant to Section 10.

(i) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules or regulations made under this Act. Chapter - 2

Establishment, Objectives, Functions, Duties and Powers of the Academy

3. Establishment of the Academy: (1) The Nepal Academy of Science and Technology is hereby established.

(2) The Academy shall be called in the English language "Deleted by the Second Amendment. Nepal Academy of Science and Technology".

(3) The central office of the Academy shall be located in the Kathmandu Valley. 4.

6. Functions, Duties and Powers of the Academy: The functions, duties and powers of the Academy shall be as follows:-

(a) To conduct and promote study, research, development, and promotion in various subjects of science and technology on a priority basis.

(b) To assist the Government of Nepal in formulating and implementing policies relating to technology transfer.

(c) To conduct and cause to conduct programs in a coordinated manner with domestic or foreign scientific and technological bodies.

(d) To develop a central documentation and information system relating to science and technology and provide services.

(e) To organize and cause to organize seminars, conferences, etc. on science and technology subjects and to publish and cause to publish various publications relating to science and technology.

(f) To establish, expand and strengthen relations with regional or international and other foreign associations and institutions relating to science and technology and to exchange mutual cooperation.

(g) To obtain and mobilize financial, technical and other assistance from national and international bodies for the operation of the Academy and for science and technology related work.

(h) To value and encourage individuals or institutions that make outstanding contributions to the development, promotion or application of science and technology.

(i) To increase and cause to increase awareness among the public about the utility and usefulness of science and technology and to create a favorable environment for increasing the use of science and technology.

(j) To study the programs and achievements of national bodies relating to science and technology and prepare periodic reports.

(k) To advise the Government of Nepal on science and technology development programs.

(l) To advise the Government of Nepal on the establishment of new bodies or laboratories for research and development of science and technology.

(m) To provide financial or technical assistance as prescribed for the development of any laboratory or body

relating to science and technology within the country.

(n) To establish exhibition halls for outstanding inventions and models relating to science and technology.

(o) To perform and cause to perform other necessary work to fulfill the objectives of the Academy. Chapter - 3

Deleted by the Second Amendment. Chancellor, Vice-Chancellor and Academicians

Repealed by the Some Nepal Laws Amendment Act, 2063.7. 8.

Chancellor: (1) The Prime Minister shall be the Chancellor of the Academy. (2) The Chancellor shall be the head of the Academy and the Chairperson of the Assembly. (3) The Chancellor shall have the right to inspect or cause to inspect and give directions on any matter or work related to the Academy or the Academy. (4) The Chancellor may, by written order, cancel or suspend any act contrary to this Act or the rules or regulations made under this Act and cause an investigation to be made, and information thereof shall be given to the Assembly. (5) Deleted by the First Amendment 9. Vice-Chancellor: (1) Amended by the Second Amendment. The Minister or Minister of State for Education, Science and Technology shall be the Vice-Chancellor of the Academy. (2) The Vice-Chancellor shall implement or cause to implement such matters as the Assembly or the Chancellor may specify to be implemented by the Vice-Chancellor. (3) In the absence of the Chancellor, the Vice-Chancellor shall perform the functions of the Chancellor. Amended by the First Amendment. 10. Academicians: Amended by the Second Amendment. (1) Scholars who have made outstanding contributions in the field of science and technology shall be eligible to be Academicians of the Academy. For recommending nomination of such Academicians, a committee shall be formed by the Chancellor consisting of the Vice-Chancellor as Chairperson, the Deputy Vice-Chancellor, and one member of the Assembly. (2) The committee formed pursuant to sub-section (1) shall recommend to the Chancellor for nomination as Academicians from among scholars possessing prescribed qualifications who have made outstanding contributions in the field of science and technology. While recommending for nomination, foreign scholars may also be included. Provided that foreign Academicians shall not be members of the Assembly. (3) The Chancellor shall nominate persons recommended pursuant to sub-section (2) as Academicians of the Academy. Amended by the Second Amendment. (4) While making nominations pursuant to sub-section (3), Academicians shall be nominated at the rate of a maximum of two persons each year. Added by the Second Amendment. (5) Other provisions relating to Academicians shall be as prescribed. Added by the Second Amendment. 10A. Associate Academicians: (1) Talented scientists or technologists who have conducted higher studies or research in the field of science and technology shall be eligible to be Associate Academicians of the Academy.

For recommending nomination of Associate Academicians, a committee shall be formed by the Chancellor consisting of the Vice-Chancellor as Chairperson, the Deputy Vice-Chancellor, and one member of the Assembly. (2) The committee formed pursuant to sub-section (1) shall recommend to the Chancellor for nomination as Associate Academicians from among talented scientists or technologists possessing prescribed qualifications who have conducted higher studies or research in the field of science and technology. (3) The Chancellor shall nominate persons recommended pursuant to sub-section (2) as Associate Academicians of the Academy. (4) While making nominations pursuant to sub-section (3), five persons shall be nominated for the first time after the commencement of this section, and thereafter at the rate of a maximum of two persons each year. (5) Other provisions relating to Associate Academicians shall be as prescribed. Chapter - 4 Organizational Structure of the Academy and Academic Assembly 11. Organization of the Academy: The organization of the Academy shall be as follows. Their collective form shall

constitute the structure of the Academy:- (a) Academic Assembly, (b) Management Council, (c) Service Commission, (d) Central Office, (e) Committees and Bodies. 12.

Formation of the Academic Assembly: (1) There shall be an Academic Assembly as the supreme body of the Academy. (2) The formation of the Academic Assembly shall be as follows:- (a) Chancellor - Chairperson (b) Vice-Chancellor - Vice-Chairperson (c) Vice-Chairperson, National Planning Commission - Member (d) Deputy Vice-Chancellor - Member (e) Up to two persons nominated by the Chancellor from among the Vice-Chancellors of universities - Member (f) Three persons nominated by the Chancellor from among the Chairpersons of professional associations and institutions relating to science and technology established pursuant to the prevailing law - Member (g) Two persons nominated by the Chancellor from among the scientific and technical employees working in the Academy - Member Amended by the Second Amendment.(h) Twenty-seven persons nominated by the Chancellor from among the Academicians, ensuring appropriate representation of women among others, keeping inclusiveness in mind, and while making such nominations, the principle of inclusiveness shall be followed as far as possible. - Member Added by the Second Amendment.(h1) Two persons nominated by the Chancellor from among the Associate Academicians - Member Added by the Second Amendment.Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.(h2) Secretary, Ministry of Education, Science and Technology - Member Added by the Second Amendment.(h3) Two persons nominated by the Chancellor from among officers of the Government of Nepal who have worked in the field of science and technology, at least of gazetted first class - Member Added by the Second Amendment.(h4) Two persons nominated by the Chancellor from among persons related to science and technology from the industrial sector - Member (i) Secretary of the Academy - Member-Secretary Amended by the Second Amendment.(3) The nomination of members pursuant to clauses (e), (f), (g), (h), (h1), (h3) and (h4) of sub-section (2) shall be made on the recommendation of the Deputy Vice-Chancellor as prescribed. Their term of office shall be two years. (4) The facilities of the members of the Assembly shall be as prescribed. 13.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) To determine the short-term, long-term, contemporary and annual policies, plans and programs of the Academy. (b) To pass the annual or supplementary budget of the Academy. (c) To pass the rules relating to the operation and management of the Academy. (d) To evaluate or cause to evaluate the performance of the Academy. (e) To appoint an auditor and fix remuneration for auditing the accounts of the Academy. (f) To give directions to the Council for action on the audit report and other reports of the Academy. (g) To make provisions for scholarships, fellowships, medals and awards, and to make provisions for appropriate appreciation, honor or award to institutions or individuals making outstanding contributions in the fields of science and technology subjects. (h) To discuss and pass the annual report submitted to the Assembly. (i) To cause the Council to perform other work necessary to fulfill the objectives of the Academy.

14. Meetings of the Assembly: (1) The meeting of the Assembly shall ordinarily be held twice a year. (2) The meeting of the Assembly shall be presided over by the Chairperson of the Assembly. In the absence of the Chairperson, the Vice-Chairperson shall preside over the meeting of the Assembly. (3) Other procedures relating to the meeting of the Assembly shall be as prescribed. Chapter - 5 Management Council 15.

Formation of the Council: (1) There shall be a Management Council as follows to function as the executive body of the Academy, subject to this Act or the rules made under this Act and the directions of the Assembly:- (a) Deputy Vice-Chancellor - Chairperson (b) Up to five persons nominated by the Chancellor from among the members of the Assembly - Member (c) Secretary of the Academy - Member-Secretary (2) The Council and the office bearers of the Council shall be collectively and individually responsible to the Assembly. 16.

Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To implement the decisions made by the Assembly from time to time and to follow the directions given by the Assembly. (b) To submit the annual program, budget, audit report and other reports and proposals of the Academy to the Assembly for decision. (c) To protect and look after the movable and immovable property of the Academy. (d) To manage and operate the fund of the Academy. (e) To make necessary arrangements for the management and administration of various bodies of the Academy. (f) To accept donations and contributions received for the Academy. (g) To perform other work as directed by the Assembly and as prescribed.

17. Meetings of the Council: (1) The meeting of the Council shall ordinarily be held four times a year. (2) The meeting of the Council shall be presided over by the Chairperson of the Council. In the absence of the Chairperson, a person chosen by the members of the Council from among themselves shall preside over the meeting of the Council. (3) Other procedures relating to the meeting of the Council shall be as prescribed.

Chapter - 6 Service Commission

18. Service Commission of the Academy: (1) There shall be an Academy Service Commission as follows to recommend for the permanent appointment and promotion of employees in the Academy:- (a) Person nominated by the Chancellor - Chairperson (b) One member designated by the Chairperson of the Public Service Commission - Member (c) One Academician nominated by the Chancellor from among the Academicians - Member (d) Secretary of the Academy - Member-Secretary (2) The term of office of the Chairperson and nominated members of the Service Commission shall be Amended by the First Amendment.four years, and they may be reappointed for one more term. (3) Other functions, duties, powers and procedures of the Service Commission shall be as prescribed. (4) The functions, duties and powers, and remuneration, facilities and other conditions of service of the Chairperson and members of the Service Commission shall be as prescribed. (5) The Chairperson of the Service Commission shall submit the annual report of the Service Commission to the Chancellor, and the Chancellor shall present that report to the Assembly for consideration. The Assembly may consider the report and give necessary directions to the Service Commission.

Chapter - 7 Office Bearers, Central Office, Committees and Other Bodies

19. Deputy Vice-Chancellor: (1) The Deputy Vice-Chancellor shall be the chief officer working full-time in the Academy.

Added by the First Amendment.(1a) For recommending appointment to the position of Deputy Vice-Chancellor, a committee shall be formed by the Chancellor consisting of the Vice-Chancellor as Chairperson and two members of the Assembly, and the Chancellor shall appoint the person recommended by such committee from among persons who have made outstanding contributions in the field of science and technology to the position of Deputy Vice-Chancellor. (2) The term of office of the Deputy Vice-Chancellor shall be Amended by the First Amendment.four years. He/she may be reappointed to the same position for one more term. (3) The responsibility of implementing or causing to implement the decisions and directions made by the Assembly and the Council shall lie with the Deputy Vice-Chancellor. (4) It shall be the duty of the Deputy Vice-Chancellor to comply with and cause to comply with this Act or the rules or regulations made under this Act. (5) The Deputy Vice-Chancellor shall have general control over all activities of the Academy. (6) Other functions, duties and powers of the Deputy Vice-Chancellor shall be as prescribed. (7) The remuneration, facilities and other conditions of service of the Deputy Vice-Chancellor shall be as prescribed. (8) If the Deputy Vice-Chancellor considers that any act under this Act or the rules or regulations made under this Act must be done immediately, the Deputy Vice-Chancellor may perform such act and shall give information thereof to the Assembly as soon as possible.

Added by the First Amendment.19A. Removal from Office: (1) If one-fourth of the existing members of the Assembly submit a written application to the Chancellor stating that the Deputy Vice-Chancellor or the Chairperson of the Service Commission has not fulfilled the responsibilities according to his/her office, an investigation committee shall be formed by the

Chancellor consisting of the Vice-Chancellor as Chairperson and two members of the Assembly. (2) The committee formed pursuant to sub-section (1) shall make necessary investigation in relation thereto and submit its report to the Assembly. (3) If, upon the report submitted pursuant to sub-section (2), the Assembly recommends by a majority of the total number of members that the Deputy Vice-Chancellor or the Chairperson of the Service Commission has not fulfilled the responsibilities according to his/her office, he/she shall be removed by the Chancellor. Provided that before being recommended for removal in such manner, they shall not be deprived of an opportunity to submit their defense. 20.

Secretary: (1) The Chancellor shall appoint the Secretary of the Academy on the recommendation of the Deputy Vice-Chancellor. (2) The Secretary shall be an officer working full-time in the Academy. (3) The term of office of the Secretary shall be four years. He/she may be reappointed to the same position for one time. (4) The employees, finance and fund and other general administration of the Academy shall be under the Secretary. He/she shall perform other work as prescribed under the supervision of the Council and the Deputy Vice-Chancellor. (5) The functions, duties and powers, and remuneration, facilities and other conditions of service of the Secretary shall be as prescribed. 21. Central Office of the Academy: (1) There shall be a Central Office of the Academy. (2) The organization, functions, duties and powers of the Central Office shall be as prescribed. 22. Committees: (1) Various committees may be formed as necessary on matters falling within the purview of the Chancellor, Deputy Vice-Chancellor, Assembly, Council and other office bearers. (2) The functions, duties, powers and procedures of the committees pursuant to sub-section (1) shall be as prescribed. 23. Other Bodies: (1) For fulfilling the objectives of the Academy, if the Assembly considers necessary, it may establish appropriate bodies from time to time. Such bodies shall be under the Central Office. (2) The organization, functions, duties, powers and procedures of the bodies pursuant to sub-section (1) shall be as prescribed. Chapter - 8 Fund, Accounts and Audit of the Academy 24. Fund of the Academy: (1) There shall be a Fund of the Academy. (2) The Fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount of loans, subscriptions, assistance, grants or donations received from any person, institution or country, (c) Amount received from any other source. (3) The amount of the Fund of the Academy shall be deposited by opening an account in any commercial bank. (4) The operation of the Fund and account of the Academy shall be as prescribed. (5) All expenses of the Academy shall be borne from the Fund pursuant to sub-section (2). (6) The Council may make appropriate investment of the amount of the Fund of the Academy without adversely affecting the interest of the Academy. 25. Accounts and Audit: (1) The accounts of the income and expenditure of the Academy shall be maintained in accordance with the prevailing law.

Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.(2) The audit of the Academy shall be conducted by the Auditor General. Chapter - 9 Miscellaneous Amended by the Second Amendment.26. Annual Report: (1) The Deputy Vice-Chancellor shall submit the annual report relating to the activities of the Academy to the Assembly within the prescribed period, and the Assembly may consider such report and give necessary directions. The report shall be finalized in accordance with the directions so received. (2) The report pursuant to sub-section (1) shall, among other things, include the major work done by the Academy in the field of science and technology, achievements made in the field of science and technology and their industrial or practical application, details of income and expenditure, details of expenses incurred in each area of study, research and administration. (3) The Deputy Vice-Chancellor shall submit the report finalized after consideration by the Assembly pursuant to sub-section (1) to the Prime Minister. (4) The Prime Minister shall cause the report submitted pursuant to sub-section (3) to be made public through Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.the Minister for Education, Science and Technology. 27. Delegation of Powers:

The Assembly may delegate all or some of the powers available to it under this Act or the rules or regulations made under this Act to the Council.

28. Liaison Ministry: The Academy shall maintain liaison with the Government of Nepal through the Ministry of Education, Science and Technology of the Government of Nepal.

29. Government of Nepal may give Directions: Amended by the First Amendment. For the fulfillment of the objectives of this Act, the Government of Nepal may give necessary directions to the Academy, and it shall be the duty of the Academy to comply with such directions.

30. Repealed by the Income Tax Act, 2058

31. Power to Make Rules or Regulations: (1) The Assembly may make necessary rules for the implementation of the objectives of this Act. (2) Subject to this Act and the rules made under this Act, the Council may make necessary regulations for the conduct of the work of the Academy.

32. Saving: The Nepal Academy of Science and Technology established under the provisions relating to the Nepal Academy of Science and Technology by His Majesty the King shall be deemed to have been established by this Act and shall continue.